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RAJNEESH SETH, DEPUTY INSPECTOR GENERAL, PRISONS, MAHARASHTRA

ings and occasional trips to the hospital, if an inmate is unwell. Senior officers say that it is common practice for prisoners to feign sickness for a chance to get out of the jail premises. Once that happens, it is difficult to monitor every move of a prisoner. Jail vans are trailed by bikers for surreptitious conversations with the boss thorough windows, or mobiles are exchanged for quick conversations with other aides.

For instance, a famous south Indian gangster trading in drugs and lodged in Nashik jail, travelled to Mumbai on the pretext of a kidney disorder. At the time when he was ‘officially’ in hospital recovering from his illness, he was, in fact, on a flight from Mumbai to Malaysia, to meet his boss, Chota Rajan. In 2005, the Criminal Intelligence Unit of the Mumbai Police Crime Branch found



gangster D.K. Rao in conversation with his gang members during his confinement in Arthur Road Jail. In the transcript of the cellphone conversations, the police have traced calls to his boss Rajan, Rajan’s wife Sujata, and other gangsters. The tapes also revealed that

Rao had paid Rs 2.5 crore to a Maharashtra minister to reinstate 12 officials at the Nashik jail.

From recruitment drives for gangs to planning murders and extortion, everything is micro-managed by convicts and undertrials from within the confines of high security prisons. Advocate and expert criminal lawyer Majeed Memon agrees. “It is not unknown that mobile phones and other prohibited articles, sometimes even weapons are available inside prison premises,” he says. Deputy Inspector General, Prisons, Rajneesh Seth confesses: “There have been acts of omission and commission on the part of jail authorities in the past. However, when we find out, we come down heavily on the erring staff.” Sometimes, when they cannot subvert the system, gang members devise innovative ways of communicating with dons inside—they get booked for petty crimes, enter jails and meet their bosses. The Arthur Road prison is most notorious for such activities since it houses the maximum number of undertrials and convicts.

Despite such incidences, some believe that tracking truants is possible. Says former commissioner of Mumbai Police, M.N. Singh: “In some jails in Uttar Pradesh, gangs celebrate DJ nights and throw private parties. It is not the police officer but the system that should be blamed for such excesses.” Singh adds that the entire prison department in Maharashtra is a much neglected section and a revision of salaries, training, service conditions and infrastructure will help in firming-up the department. Even the Prisons Act of 1894, says Singh, needs to be amended for a complete revamp of the prisons system. Advocate and former ips officer Y.P. Singh agrees, “A system of collaborative corruption is at work inside the jail premises. The best way to stop this is to ensure better working conditions for the staff involved.”

With senior prison officials pushing for security measures like mobile phone jammers and video conferencing to prevent prisoners from stepping out of jail premises, organised crime may face a setback. However, since implementation of such plans could take several months, keeping prisons breach-free may only be a pipe dream. ■